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BACKGROUND

On September 25, 2025, Plaintiffs

Travis Alexander ("Alexander") and Crux Wealth Advisors, LLC ("Crux LLC") (collectively, "Plaintiffs") filed a complaint against Defendants Beau Ashley Riggs ("Riggs"), 44B LLC ("44B"), Resolute Wealth Planning ("Resolute"), Accreux Wealth Management, LLC ("Accreux"), alleging various breach of contract and fraud claims.

On December 30, 2025, 4B filed the instant motion to quash service of summons.

On January 9, 2026, Accreux filed the instant motion to quash service of summons.

On March 27, 2026, Attorney for Plaintiffs Travis Alexander and Crux Wealth Advisors, LLC's Motions to Be Relieved as Counsel were granted. Plaintiffs have not retained new Counsel.

On June 23, 2026, Riggs filed the instant Motion for Forum Non Conveniens.

As of August 31, 2026, no oppositions have been filed.

DISCUSSION

MOTION FOR FORUM NON CONVENIENS

Applicable

Law

Code of Civil

Procedure section 410.30, subd. (a) provides: "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just."

"In

determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a 'suitable' place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California." (Stangvik v. Shiley Incorporated (1991) 54 Cal.3d 744, 751.)

"An

alternative forum is suitable if it has jurisdiction and the action in that forum will not be barred by the statute of limitations. It bears emphasis that '[i]t is sufficient that the action can be brought, although not necessarily won, in the suitable alternative forum.' That the law is less favorable to the plaintiffs in the alternative forum, or that recovery would be more difficult if not impossible, is irrelevant to the determination whether the forum is suitable unless 'the alternative forum provides no remedy at all.'" (Guimei v. General Electric Co. (2009) 172 Cal.App.4th 689, 696 (Citations Omitted).) The 'no remedy at all' exception applies 'only in "rare circumstances," such as where the alternative forum is a foreign country whose courts are ruled by a dictatorship, so that there is no independent judiciary or due process of law.' [Citation.]" (Id. at 696–697.)

"The private

interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that

they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation." (Guimei, *supra*, 172 Cal.App.4th at 701 (Citations Omitted).)

"On a motion for forum non conveniens, the defendant, as the moving party, bears the burden of proof. The granting or denial of such a motion is within the trial court's discretion, and substantial deference is accorded its determination in this regard." (Stangvik, *supra* 54 Cal.3d at 751.)

Analysis

Riggs moves to dismiss the Complaint, or in the alternative, stay the action, on the grounds of forum non conveniens pursuant to California Code of Civil Procedure ("CCP") § 410.30(a).

1.

Forum

Selection Clause

"The procedure for enforcing a forum selection clause is a motion to stay or dismiss for forum non conveniens." (Olinick v. BMG Entertainment (2006) 138 Cal.App.4th 1286, 1294; Code Civ. Proc., § 410.30.) Forum non conveniens is an equitable doctrine, codified in Code of Civil Procedure section 410.30, under which a trial court has discretion to stay or dismiss a transitory cause of action that it believes may be more appropriately and justly tried elsewhere. [Citation.] The inquiry is whether 'in the interest of substantial justice an action should be heard in a forum outside this state.' [Citation.]" (Animal Film, LLC v. D.E.J. Productions, Inc. (2011) 193 Cal.App.4th 466, 471.)

"In

a contract dispute in which the parties' agreement contains a forum selection clause, a threshold issue in a forum non conveniens motion is whether the forum selection clause is mandatory or permissive." (Animal Film, LLC, *supra*, 193 Cal.App.4th at p. 471.) Where a forum selection clause is "mandatory" and thus, "mandate[s] litigation exclusively in a particular forum", "the modern trend is to enforce mandatory forum selection clauses unless they are unfair or unreasonable." (Berg v. MTC Electronics Technologies (1998) 61

Cal.App.4th 349, 358-359.) In other words, “[a] court will usually honor a mandatory forum selection clause without extensive analysis of factors relating to convenience”—rather, “the test is simply whether application of the clause is unfair or unreasonable”. (Ibid.) The plaintiff bears the burden of demonstrating that enforcement of the clause would be unreasonable under the circumstances of the case. (Lu v. Dryclean-U.S.A. of California, Inc. (1992) 11 Cal.App.4th 1490, 1493.) Conversely, where a forum selection clause is “permissive”, that is, where “the clause merely provides for submission to jurisdiction and does not expressly mandate litigation exclusively in a particular forum, then the traditional forum non conveniens analysis applies.’ [Citations.]” (Animal Film, LLC, supra, 193 Cal.App.4th at p. 471.)

Riggs

contends that the Court should decline enforcement of the forum selection clause in the Advisor Affiliation Agreement (“the Agreement”) governing the parties’ dispute, which states as follows:

18. Venue.

In the event the Parties are not able to resolve any dispute between them arising out of or concerning this Agreement, or any provisions hereof, whether in contract, tort, or otherwise at law or in equity for damages or any other relief, then Advisor, Branch Owner and the Company hereby irrevocably submit to the exclusive jurisdiction of any state and federal courts located in Los Angeles County, California over any dispute, suit, action or proceeding, whether at law or in equity, arising out of or relating to or concerning this Agreement.

(Complaint,
Ex. A., p. 10.)

As a preliminary matter, the Court finds that this forum selection clause is mandatory (“mandate[s] litigation exclusively in a particular forum”) rather than permissive, given the clear language that the parties “irrevocably submit to the exclusive jurisdiction of any state and federal courts located in Los Angeles County, California.” (Ibid.) The sole test is thus whether the movant satisfies their burden to show that application of the clause is “unfair or unreasonable” without “extensive analysis of factors relating to convenience” (Berg, supra, Cal.App.4th at 358-359.)

Riggs contends that the Clause violates California labor law and public policy. (Mot., p. 4.) Specifically, Riggs argues that the Clause requiring Riggs to adjudicate claims in California is unenforceable because it directly violates California Labor Code § 925, which provides that an employer shall not require an employee who primarily resides and works in California, as a condition of employment, to agree to adjudicate outside California claims arising in California or to deprive the employee of the substantive protection of California law. Riggs asserts that this Clause requires a New York resident, who only performed work in New York, to litigate claims arising in New York in California. Riggs argues that although the forum selection clause here requires the inverse of the specific statutory language—by requiring Riggs to adjudicate New York-based claims in California—enforcing the clause would directly frustrate California's legislatively declared policy that employees should not be compelled to litigate employment disputes outside of the state in which they work and live.

Here, the Court finds that Riggs satisfies their burden to show that application of the Clause is unfair or unreasonable, based on the following facts: (1) Riggs solely resided in New York when the conduct giving rise to this action occurred, and currently resides in New York; (2) all services provided in connection with the Agreement were performed in New York; (3) Riggs negotiated the terms of the Agreement with Plaintiffs in New York; (4) all clients subject to the Affiliation Agreement were and/or are located in New York; and (5) the claims arise from Riggs's performance of employment-related activities for Plaintiffs in New York. (See Riggs Decl., ¶¶ 2, 4, 5.) Requiring Riggs to litigate in California, where both Riggs and the conduct giving rise to the claims at issue have no ties to, would be unfair by imposing precisely the burden § 925 was enacted to prevent.

As the Court has found the Clause unfair or unreasonable, and Plaintiffs have failed to oppose, the Court need not engage in “extensive analysis of factors relating to convenience.” (Berg, *supra*, Cal.App.4th at 358-359.) Thus, in the interests of judicial economy, the Court will not engage in further analysis of the traditional balancing factors which are not considered in the forum selection clause analysis.

Thus, Riggs's Motion for Forum Non Conveniens is GRANTED. Riggs is thereby DISMISSED.

MOTIONS TO QUASH SERVICE OF SUMMONS

Applicable

Law

"A defendant,

on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a).)

"A court of

this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) The exercise of personal jurisdiction is constitutionally permissible only if the defendant has sufficient "minimum contacts" with the forum state so that the exercise of jurisdiction "does not offend 'traditional notions of fair play and substantial justice.'" (Internat. Shoe Co. v. Washington (1945) 326 U.S. 310, 316; accord, Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 268.) The defendant's contacts with the forum state must be such that the defendant had "fair warning" that its activities might subject it to personal jurisdiction in the state. (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 472.) "In judging minimum contacts, a court properly focuses on 'the relationship among the defendant, the forum, and the litigation.'" (Calder v. Jones (1984) 465 U.S. 783, 788.)

"A plaintiff

opposing a motion to quash service of process for lack of personal jurisdiction has the initial burden to demonstrate facts establishing a basis for personal jurisdiction." (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1167.) The plaintiff must establish the facts of jurisdiction by a preponderance of the evidence." (Aquila, Inc. v. Sup. Ct. (2007) 148 Cal.App.4th 556, 568.)

Analysis

Accreux and 44B each move to quash

service of summons on the grounds of lack of personal jurisdiction. The Motions

are substantially similar, and the Court will thus analyze them concurrently.

Accreux and 44B contend that general jurisdiction exists only where a defendant's affiliations with the forum state are so continuous and systematic as to render it essentially at home in the forum. Movants argue that neither Accreux or 44B are "at home" in California based on the following: (1) Movants have never registered to do business in California (See Riggs Decl. ¶ 4; Durfee Decl. ¶ 3); (2) Movants have never maintained offices in California and have never leased or owned any real property in California (see Riggs Decl. ¶ 4; Durfee Decl. ¶ 3); (3) Movants do not maintain, and have never maintained, any bank accounts, mailing addresses, or telephone numbers in California (see Riggs Decl. ¶ 5; Durfee Decl. ¶ 4); (4) Movants have never conducted any business in California, and have not sold their services to customers located in California (see Riggs Decl. ¶ 7; Durfee Decl. ¶ 6); (5) Defendant Accreux does not advertise and never has advertised its services to prospective customers located in California. (See Durfee Decl. ¶ 7.)

Here, the Court finds that Movants do not have sufficient "minimum contacts" with California to justify the exercise of personal jurisdiction over them. Movants conduct business entirely in New York State. The burden is on Plaintiffs here, and Plaintiffs have not filed any opposition establishing a basis for personal jurisdiction. Thus, the Motions to Quash Service of Summons are GRANTED.

CONCLUSION

Defendant

Beau Ashley Riggs's Motion for Forum Non Conveniens is GRANTED. Riggs is thereby DISMISSED.

Defendant Accreux Wealth's Motion to

Quash Service of Summons is GRANTED. Accreux is thereby DISMISSED.

Defendant 44B, LLC's Motion to Quash

Service of Summons is GRANTED. 44B, LLC is thereby DISMISSED.

The Court sets an OSC re: Why Crux

Wealth Advisors, LLC's Claims Should Not Be Dismissed For Failure to Retain New Counsel as an LLC cannot represent itself in Court.